

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUBC061095: JAMES FRANK FOSTER, JR., et al. vs FCA US LLC
08/05/2026 in Department 44
MANDATORY APPEARANCE CMC/Order to Show Cause Re Sanctions/Dismissal for
Failure to File Proof of Service/Default

This Case Management Order (“CMO”) shall govern this litigation. If the parties have questions or concerns with any aspect of the CMO, they are directed to voice those concerns at the case management conference.

REMOTE APPEARANCES

The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

DEPARTMENT RULES

Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>. The Court updates these rules from time to time. Counsel and parties are required to follow the operative rules.

CASE STATUS

The case is at issue and jury fees have been posted.

LITIGATION DATES:

Event	Date
Trial	February 7, 2028, at 1:30 p.m.
Pretrial Conference	January 28, 2028, at 8:30 a.m.
All other Litigation Dates & Deadlines	Per Code of Civil Procedure

JURY TRIAL

The Court sets this matter for a 5-day **jury trial** on the above trial date in Department 44 of the Ventura County Superior Court. The trial date is a **date certain** for trial under California Rules of Court, Rule 3.1332. The Court **will not** grant any continuances but for a request made pursuant to, and good cause showing under, Rule 3.1332. Trial counsel are ordered to attend trial in person.

PRETRIAL CONFERENCE

The Court also sets a Pretrial Conference on the above pretrial conference date in Department 44. The parties are ordered to **complete mediation at least 30 days prior to the pretrial conference**, and **file a joint pretrial conference report** in accordance with the Local Rules for Department 44, which rules are incorporated into and made part of this Case Management Order. **Trial counsel is ordered to appear at the Pretrial Conference**, and may attend the pretrial conference remotely so long as trial counsel provides timely registration of their intent to appear remotely in accordance with the Court's local rules.

The OSC will be discharged.

The parties are requested to waive notice. To the extent the parties submit on the tentative, they are requested to advise the court whether notice is waived.